Business and Individual Banking/ Investment Account Terms

Bidvest Bank
Let's get it done

Contact Details

The Service Centre of Excellence can be reached on **0860 11 11 77** (domestic) or **+27 11 407 3103** from outside of South Africa.

Interest Rate and Fee Schedules are published on the Bank's website and can be viewed at: **www.bidvestbank.co.za**

Section A - General Terms and Conditions

1. Defined terms

1.1 **The Bank** means Bidvest Bank Limited, licensed in terms of the Banks Act, 1990 and in respect of which the words "us", "we" or "our" may also be used.
1.2 **Business Day** means any day except Saturdays, Sundays and official South African public holidays.
1.3 **Calendar Days** means every consecutive day in the month, including weekends.
1.4 **Customer** means the person or entity to whom the services are rendered to.
1.5 **EFT** means electronic funds transfer.
1.6 **Fee** means the fee indicated on the statement of a Customer's account and charged in accordance with the Bank's Fee Schedule, in respect of any of the Bank's services.
1.7 **Dormant Account** means an Account on which the Customer has not initiated any debit or credit transactions for a period of six (6) months; or in respect of Section B of these Terms and Conditions, an account on which the available funds is below the minimum allowable balance and the Customer has not initiated any debit or credit transactions for a period of six (6) months.

2. Interest

2.1 The interest rates we offer on investment products, is either directly linked to our prime rate or may change at the Bank's discretion daily, weekly, monthly or at other intervals.
2.2 Interest on Call/Notice Deposit Accounts/Non-Resident and Ceded Accounts:
- Interest is calculated daily.
- Interest can either be capitalised or paid to a nominated account monthly.

2.3 Interest on Fixed Deposits:
- Interest can either be paid to a nominated account monthly or at the end of the term.
- The interest rate accepted by the Customer upon application is the rate applicable at that specific time. Should there be a rate change prior to, or on the date that the Fixed Deposit Account is funded by the Customer, the new interest rate will be applicable to the Fixed Deposit.
- Should an interest rate be accepted by the Customer prior to the maturity date of the Fixed Deposit, the rate is applicable at that specific time. Should there be a rate change prior to or on the maturity date of the Fixed Deposit, the new interest rate will be applicable to the Fixed Deposit.

2.4 Interest is payable according to the Bank's Interest Rate Schedule, available on the Bank's website.

3. Dormant Accounts

3.1 The Bank reserves the right to charge Dormant Account Fees in accordance with the Bank's Fee Schedule.
3.2 The Bank shall be entitled to close a Dormant Account on thirty (30) Calendar Days' notice sent to the Customer via the latest details provided.
3.3 No interest accrues on Dormant Accounts.

4. Statements

4.1 Monthly statements are issued at no charge.
4.2 Fixed Deposit Account statements are issued only when the fixed deposit is closed. Should you require a statement at any time before date of closure, you can request it from our Service Centre of Excellence **(servicecentre@bidvestbank.co.za).**
4.3 A charge may be levied for duplicate statements in accordance with the Bank's Fee Schedule available on the Bank's website.
4.4 Statements should be checked by the Customer on receipt and any discrepancies reported to the Bank within thirty (30) days.
4.5 Statements are not available for a Fixed Deposit Contract.

5. General

5.1 The Bank will not disclose any information about the Customer or the Customer's accounts, except:
- when the Bank is legally compelled to do so;
- when it is in the public interest to do so;
- when the Bank's interests require disclosure; and
- when disclosure is made at the Customer's request or with the Customer's consent.

5.2 The Bank will send notices to the contact details given by the Customer on the Account Opening Form, unless the Customer has informed the Bank of any changes.
5.3 The Bank reserves the right to amend these terms from time to time, which change will be communicated to the Customer and placed on the Bank's website. Updated terms may be found on the Bank's website at: **www.bidvestbank.co.za**
5.4 The Bank will not be liable for loss on any account arising from any failure, delay or malfunction in any electronic funds transfer, network, or ATM, caused by circumstances beyond the Bank's control.
5.5 You agree that the information you have provided in the Application is true and accurate. You agree to inform the Bank immediately if the information provided changes.
5.6 The Terms and Conditions constitute the sole record of the agreement between you and us with regard to the subject matter hereof.
5.7 You may not change any of the Terms and Conditions.
5.8 No indulgence we may grant to you shall constitute a waiver of or prejudice our rights in terms of the Terms and Conditions.
5.9 You may not cede your rights or delegate your obligations in terms of the Terms and Conditions.
5.10 If the Bank takes legal action against you to recover any amount due in terms of this agreement, you will be liable for the Bank's costs (including all legal fees, collection commission, and tracing fees) on the scale between attorney and client.
5.11 You agree that the Bank may sue you in the Magistrates Court, even if the claim against you exceeds the jurisdiction of the Magistrates Court.
5.12 A certificate signed by any Bank official (whose appointment needs not be proved) as to the amount of your debt to the Bank, the fact that the amount is payable, the rate of interest payable, and the date from which such interest is calculated, will be proof of the facts stated in the certificate for the purpose of provisional sentence or summary judgment proceedings or for any other purpose.
5.13 You must immediately inform us if you are placed under administration, become insolvent or have any other form of legal disability.
5.14 If any of the Terms and Conditions are found to be unenforceable for any reason, the remaining Terms and Conditions shall continue to be of full force and effect.
5.15 The Terms and Conditions will be governed by the laws of the Republic of South Africa.
5.16 Any application for an Account is subject to the Bank's approval criteria and may be declined at the Bank's sole discretion.
5.17 The Bank will request certain information from you before your Application can be considered.
5.18 You must provide complete, accurate information. If you cannot provide satisfactory proof of identity, and/or other supporting documentation, the Bank may decline your Application.
5.19 The Bank may, in order to meet its regulatory obligations, request additional information and documentation from you after the approval of your Application.
5.20 By applying for an Account, you agree to accept and be bound by these Terms and Conditions.

6. Warranties, Acknowledgement and Confirmation

6.1 You acknowledge and confirm that the Bank may request information from any person, credit bureau, bank or business, relevant to the services in which you are interested.
6.2 You warrant that the information contained herein is correct, true and complete and that you have full capacity and authority to transact with the Bank.
6.3 You acknowledge that you are required to provide documents to verify your identity in terms of anti-money laundering legislation.
6.4 You warrant that you have complied with all applicable legislation and regulations governing your activities including anti-money laundering legislation and exchange control legislation.
6.5 You acknowledge and confirm that the Bank may carry out identity, fraud prevention and other illegal activities checks and share information related to this application through the Southern African Fraud Prevention Service and other organisations involved in criminal activities prevention.
6.6 You acknowledge and confirm that you have received and read the disclosure and legal information provided by the Bank in terms of the Financial Advisory and Intermediary Services (FAIS) Act.

7. Electronic Communication Indemnity

7.1 You acknowledge that telephone conversations with the Bank may be recorded, and you consent to such a recording.

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7.2 You agree that in any dispute between you and the Bank regarding electronic instructions and documentation given to the Bank, the contents of the electronic instructions, including telephone recording, or electronic document shall be final and binding on you.

7.3 You shall have no claim against the Bank, and shall indemnify the Bank, for any losses, damage or costs you may suffer or incur as a result of the Bank acting upon an electronic instruction or document, except if the Bank is grossly negligent.

7.4 You authorise the Bank to debit your account with the amount of losses, damage, costs or claims which the Bank suffers or incurs as a result of it acting on an electronic instruction or document.

8. Customer Complaints

8.1 Complaints may be directed to Bidvest Bank Limited by calling the Service Centre of Excellence on:

0860 11 11 77

or emailing

BBcomplaints@bidvestbank.co.za

Complaints may also be logged at:

www.bidvestbank.co.za

8.2 Should a complaint not be resolved to your satisfaction, you may refer such complaint in writing to the Office of the Ombud for Financial Services Providers.
Address: **Kasteel Office Park, Orange Building, 2nd floor, C/o Nossob & Jochemus street, Erasmus Kloof, Pretoria, 0048**
Email: **info@faisombud.co.za**
Facsimile: **012 324 3447**
Tel: **0860 324 766**

9. Suspension of accounts

9.1 Bidvest Bank ("the Bank") endeavours to prevent criminal activity including money laundering and terrorist financing.

9.2 Accordingly, if the Bank considers it necessary, or if applicable South African or international laws, rules, regulations, restrictions or policies ("applicable law") require it to do so, the Bank may, in its sole discretion:

9.2.1 restrict the use of or suspend your card and/or account immediately without notice to you, if it suspects that your card or account has been or is being used fraudulently, negligently or unlawfully for money laundering activities, financing terrorist and related activities, or in contravention of applicable law; or terminate this Agreement, resulting in the closure of

9.2.2 your Accounts, and prevent you from using the Bank's services, products or channels at any time after the Bank gives you reasonable notice of such termination.

9.3 The above process is to protect any affected party, as well as the Bank against criminal activity.

10. Limitation of the Bank's liability

10.1 You agree that, unless as a result of gross negligence, fraud or wilful conduct on the part of the Bank, the Bank is not liable for any direct damages or loss of any kind whatsoever or howsoever caused (whether arising under contract or delict arising as a result of your use of or inability to use any of the Bank's channels or platforms, including but not limited to Internet Banking, Mobile Applications, or participating deposit taking retailers.

10.2 Furthermore, the Bank is not liable for:

10.2.1 errors or discrepancies in the information provided

10.2.2 any unauthorised access of Internet Banking or Mobile App by third parties.

10.2.3 any breakdown or failure of any equipment or medium of access to any of the Bank's channels or platforms, including but not limited to Internet Banking, Mobile Applications, or participating deposit taking retailers.

10.2.4 any loss or damage with regard to your or any other data directly or indirectly caused by the malfunction of the Bank's channels or platforms, third-party systems, power failures, unlawful access to or theft of data, computer viruses or destructive code on the channels or third-party systems, programming defects or negligence on our part.

10.2.5 any damages you suffer as a result of a compromise of any of your Access Code(s).

10.3 Notwithstanding any other provision in these terms and conditions, you agree that the Bank shall not be liable for any indirect, special, incidental or consequential damages as a result of the aforementioned.

11. Protecting your Personal Information

11.1 Protecting your personal information is important to us. To do so, Bidvest Bank adheres to the Protection of Personal Information Act (POPIA).

11.2 We may use your Personal Information, as defined in POPIA:

11.2.1 to enable us to provide the products or services in terms of this agreement;

11.2.2 as the law permits/requires from time to time;

11.2.3 for market research and statistical analysis;

11.2.4 for sharing with service providers with which, we engage to process information on our behalf;

11.2.5 for fraud prevention and detection;

11.2.6 to protect your, our or another party's legitimate interests;

11.2.7 to provide, administer and communicate with you about products, services and promotions which we think may be of interest to you (including contests, offers and competitions), and to notify you about important changes to the features and operations of those products and services.

11.3 You may access the Personal Information that we hold in respect of you and ask us to correct any errors or delete such Personal Information we have about you.

11.4 Please refer to Bidvest Bank's Privacy Notice for further information on how the Bank treats your Personal Information. Visit the website at:
www.bidvestbank.co.za

Section B - Call, Notice and Fixed Deposit Account Terms and Conditions

12. Call Account

12.1 The minimum investment amount and minimum allowable balance in the account is One Thousand Rand (R1 000.00) which minimum amount must always be maintained.

12.2 No interest will be paid if the balance in the account is below the minimum allowable balance at any given time.

12.3 The initial deposit must be made into the account within thirty (30) Calendar Days of opening the account. If no initial deposit is received within this period, the account will be closed automatically and a closure letter will be sent to the Customer.

12.4 Tiered interest rates apply.

12.5 Fees are charged on the account in accordance with the Bank's Fee Schedule available on the Bank's website.

12.6 Deposits, withdrawals or transfers may be made, provided the minimum allowable balance is maintained at all times.

12.7 No debit orders or stop orders are allowed.

12.8 EFT payments can be made via online channels or at a Bidvest Bank branch.

12.9 Withdrawal of amounts exceeding Ten million Rand (R10 000 000.00) requires notice to be given to the Bank by 10am one (1) Business Day prior to the Business Day on which the funds are required to ensure that the funds are available.

12.10 No deposits may be made to the account after discontinuation of the product. The Customer will be informed prior to the discontinuation of a product.

12.11 If the full amount in the account is withdrawn or the balance is zero, the account will be closed and a closure letter will be sent to the Customer.

12.12 Should the customer request the Bank to make a manual payment from a Call account, the payment must be made to an account held in the same customer's name. This includes EFTs' and transfers. Manual Payments to third party accounts are not allowed.

13. Notice Deposit Account

13.1 The minimum investment amount and minimum allowable balance in the account is Five Thousand Rand (R5 000.00) which minimum amount must always be maintained.

13.2 Funds may only be withdrawn after the specified notice period has lapsed.

13.3 The applicable notice period is the notice period selected on application for the account.

13.4 Notice must be given to the Bank prior to making a withdrawal.

13.5 Notice may be given in writing by completion of a form or electronically via the Bidvest Bank online channels.

13.6 No interest will be paid if the balance in the account is below the minimum allowable balance amount at any given time.

13.7 The initial deposit must be made into the account within fourteen (14) Calendar Days of opening the account. If no initial deposit is received within this period, the account will be closed automatically and a closure letter will be sent to the Customer.

13.8 No deposits may be made to the account after discontinuation of the product. The Customer will be informed prior to the discontinuation of a product.

13.9 Cash withdrawals are not allowed on this account.

13.10 No debit orders or stop orders are allowed.

13.11 Notice may be given on a partial amount in the account.

13.12 If notice is given on the full amount in the account, and the balance is zero the account will be closed and a closure letter will be sent to the Customer.

13.13 Should the Customer wish to cancel their notice previously given, notification of such cancellation must be given to the Bank at least two (2) Business Days' prior to payout.

13.14 Early withdrawals of any amount (partial or otherwise) are subject to the Bank's discretion and penalty fees as determined by the Bank. Fees available in accordance with the Bank's Fee Schedule available on the Bank's website.

13.15 Fees are charged on the account in accordance with the Bank's Fee Schedule, available on the Bank's website.

13.16 Should a payout date fall on a Sunday or public holiday, the payment will be made on the following business day.

13.17 Payment to a third-party bank account may take up to three (3) Business Days to reflect in the account.

13.18 Should the customer request the Bank to make a manual payment from a Notice Deposit Account upon giving notice, the payment must be made to an account held in the customer's name. This includes EFTs' and transfers. Manual Payments to third party accounts are not allowed.

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14. Fixed Deposit Account

14.1 Funds are invested for a fixed period at a fixed interest rate. Refer to the Interest rate Clause 2.4 for more information. The Bank's Interest Rate Schedule is available on the Bank's website.
14.2 The minimum investment amount and minimum allowable balance in the account is Ten Thousand Rand (R10 000).
14.3 The initial deposit must be made into the account within Fourteen (14) Calendar Days of opening the account. If no initial deposit is received within this period, the account will be closed automatically and a closure letter will be sent to the Customer.
14.4 Only one deposit may be made to the account. If multiple deposits are required, the Customer must accumulate the full amount in another account before making a single deposit to the account.
14.5 Monthly interest payments or end of term (interest and capital) payouts may only be done to a single nominated account held in your name.
14.6 No additional deposits are allowed into the account.
14.7 Cash withdrawals are not allowed on the account.
14.8 No debit or stop orders are allowed.
14.9 Early withdrawal of funds is not allowed. Funds may only be withdrawn on maturity date. Access to the funds before the end of the term is only allowed at our discretion and only under extreme circumstances. An early withdrawal will attract penalty fees and /or breakage costs, which may reduce your capital amount. The Bank's Fee Schedule is available on the Bank's website.
14.10 Partial withdrawals are not allowed.
14.11 Maturity notification will be sent to the Customer 30 (thirty) days prior to the actual maturity date.
14.12 The Fixed Deposit maturity instruction must be given to the Bank at least two (2) Business Days prior to the maturity date of the Fixed Deposit.
14.13 If no instruction is given by the Customer by the maturity date of the fixed deposit, the Bank will automatically re-invest the capital amount for another term equivalent to the previous investment at the prevailing interest rate.
14.14 The same interest rules as per the previous investment will apply. Negotiated rates will not apply on the automatic reinvestment.
14.15 You will have five (5) Business Days to amend the term or withdraw the funds. Should you choose to withdraw the funds, we will not pay you interest for the period between the start date of the renewed term and the date on which it is cancelled.
14.16 Should the customer request the Bank to make a manual payment from a Fixed Deposit account, the payment must be made to an account held in the customer's name. This includes EFTs' and transfers. Payments to third party accounts are not allowed.

15. Fixed Deposit Contract (available in branches only)

15.1 Funds are invested for a fixed period at a fixed interest rate. Refer to the Interest rate Clause 2.4 for more information. The Bank's Interest Rate Schedule is available on the Bank's website.
15.2 The minimum investment amount and minimum allowable balance in the account is Ten Thousand Rand (R10 000).
15.3 Monthly interest payments or end of term (interest and capital) payouts may only be done to a single nominated account held in your name. Should the customer request the Bank to make a manual payment from a Fixed Deposit account, the payment must be made to an account held in the customer's name. This includes EFTs' and transfers. Payments to third party accounts are not allowed. Maturity notification will be sent to the Customer 30 (thirty) days prior to the actual maturity date.
15.4 If the Bank is not instructed where to transfer the funds on maturity, the Bank will transfer the funds into a Call Account held at the Bank on behalf of the customer. The Call Account will attract standard call interest rates offered by the Bank at that time.
15.5 No additional deposits are allowed into the account.
15.6 Any additional deposit will be subject to a new application.
15.7 Early withdrawal of funds is not allowed. Funds may only be withdrawn on maturity date. Access to the funds before the end of the term is only allowed at our discretion and only under extreme circumstances. An early withdrawal will attract penalty fees and /or breakage costs, which may reduce your capital amount. The Bank's Fee Schedule is available on the Bank's website.
15.8 Partial withdrawals are not allowed.
15.9 The account is not available for transacting on Internet Banking.
15.10 Statements are not available.
15.11 No debit or stop orders are permitted.

16. Dormancy Rules in Respect of the Accounts listed in Section B

16.1 If the balance falls below the minimum allowable balance, the Customer will receive a notification advising the Customer to fund their account to avoid the account going into a dormant state.
16.2 If there is no activity on the account for a period of six (6) months, the account will go into a dormant state.
16.3 Dormancy Fees will be charged from month seven (7) until the balance decreases to zero. If the account balance is zero, the account will be closed and a closure letter will be sent to the Customer via the preferred communication method as indicated to the Bank on account opening. The Bank's Fee Schedule is available on the Bank's website.
16.4 Should the Customer fund the account during the dormancy period to meet the minimum balance requirement, the account will be automatically reinstated.

Section C - Other Account Terms and Conditions

17. Settlement Account

17.1 The Account can only be used for the settlement of foreign currency commitments.
17.2 No minimum balance is required.
17.3 Fees are charged on the account in accordance with the Bank's Fee Schedule, available on the Bank's website.
17.4 The account is not available for transacting on Internet Banking, but the balance can be viewed and documents can be uploaded for payment.

18. Customer Foreign Currency (CFC) Account

18.1 The account is only available to South African corporate customers.
18.2 No minimum balance is required.
18.3 Interest is payable according to the Bank's Interest Rate Schedule, available on the Bank's website.
18.4 Fees are charged on the account in accordance with the Bank's Fee Schedule.
18.5 CFC Accounts are subject to the Currency and Exchanges Manual for Authorised Dealers, which restrict their use.
18.6 The account is not available for transacting on Internet Banking, but the balance can be viewed and documents can be uploaded for payment.

19. Foreign Currency Account (FCA)

19.1 The account is available to South African residents, non-resident individuals and non-resident corporate customers in accordance with the Currency and Exchanges Manual for Authorised Dealers.
19.2 A minimum deposit of Ten Thousand Rand (R10 000.00) is required.
19.3 Interest is payable according to the Bank's Interest Rate Schedule.
19.4 Fees are charged on the account in accordance with the Bank's Fee Schedule, available on the Bank's website.
19.5 The account is not available for transacting on Internet Banking, but the balance can be viewed.
19.6 The account may not be overdrawn.

20. Non-Resident Account

20.1 The minimum investment amount and minimum allowable balance in the account is One Thousand Rand (R1 000.00) which minimum amount must always be maintained.
20.2 The account is only available to non-resident individuals and corporate customers.
20.3 Non-resident accounts are subject to the Currency and Exchanges Manual for Authorised Dealers.
20.4 Interest is payable according to the Bank's Interest Rate Schedule, available on the Bank's website.
20.5 Fees are charged on the account in accordance with the Bank's Fee Schedule, available on the Bank's website.
20.6 All credit transactions are subject to Exchange Control approval.
20.7 The account is available on Internet Banking for local transactions only.
20.8 The account may not be overdrawn.

21. TCS Non-Resident Account/Emigrant Capital Account

21.1 The minimum investment amount and minimum allowable balance in the account is One Thousand Rand (R1 000.00) which minimum amount must always be maintained.
21.2 The account is strictly for South African residents who formally emigrate from South Africa.
21.3 Any remaining funds are held in the account after departure from South Africa.
21.4 The account is strictly controlled in terms of the Currency and Exchanges Manual for Authorised Dealers.
21.5 The transfer of funds from the account are subject to South African Reserve Bank approval, and SARS TCS Pin.
21.6 The account is available on Internet Banking for local transactions only.
21.7 The account may not be overdrawn.

22. Ceded Account

22.1 The account may be used to provide security to the Bank.
22.2 Interest is payable according to the Bank's Interest Rate Schedule, available on the Bank's website.
22.3 The account is not available for transacting on Internet Banking, but the balance can be viewed.

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Bidvest Bank
Let's get it done

Declaration and Consent

☑ You consent to Bidvest Bank processing your Personal Information, as defined in POPIA, to provide products or services in terms of this agreement.

You consent to receive direct marketing of goods and services offered by the Bank.

☐ Yes
☐ No

If Yes, specify method of communication:

☑ Email
☐ SMS
☐ Telephonically
☐ Other - Specify:

☐ You consent to Bidvest Bank analysing your Personal Information in order to offer you the best available products and services.

☑ You consent to Bidvest Bank sharing your Personal Information with Bidvest Financial Services or The Bidvest Group, in order to contact you to offer products or services that may be suitable to your financial or other needs.

☑ **By ticking this box, you agree that you have read and understood the above Terms and Conditions and Privacy Notice.**

Full Name

Signature

Date D D / M M / Y Y Y Y